

**DEPARTMENT
POLICY****MA Only**

This is an SSI-related Group 1 MA category.

MA is available to a person receiving disabled adult children's (DAC) (also called Childhood Disability Beneficiaries' or CDBs') RSDI benefits under section 202(d) of the Social Security Act if he or she:

1. Is age 18 or older; and
2. Received SSI; and
3. Ceased to be eligible for SSI on or after July 1, 1987, because he became entitled to DAC RSDI benefits under section 202(d) of the Act or an increase in such RSDI benefits; and
4. Is currently receiving DAC RSDI benefits under section 202(d) of the Act; and

Note: To receive DAC RSDI a person must have a disability or blindness that began before age 22.

5. Would be eligible for SSI without such RSDI benefits.

The Social Security Administration notifies central office when SSI terminates for a person meeting the criteria in 1-4 above. Notification is via a code on State Data Exchange (SDX) tapes. Central office sends a memo (see EXHIBIT I) to the appropriate local office. See SSI TERMINATIONS in BEM 150.

All eligibility factors must be met in the calendar month being tested. If the month being tested is an L/H month and eligibility exists, go to BEM 546 to determine the post-eligibility patient-pay amount.

DAC MA recipients eligible for Medicare are covered by the Buy-In Program (see BAM 810) and are considered eligible for QMB (BEM 165).

**NONFINANCIAL
ELIGIBILITY
FACTORS**

1. The person must be age 18 or older.

2. The person must have:

- Received SSI; and
- Ceased to be eligible for SSI on or after July 1, 1987, because the person became entitled to DAC RSDI benefits under section 202(d) of the Act or an increase in such benefits.

Note: DAC RSDI is also called Childhood Disability Benefits (CDB).

3. The person is currently receiving DAC RSDI benefits.

Note: When SSA employees say someone is a “DAC” they mean he receives DAC RSDI.

4. The MA eligibility factors in the following items must be met.

- BEM 220, Residence.
- BEM 221, Identity.
- BEM 223, Social Security Numbers.
- BEM 225, Citizenship/Alien Status.
- BEM 255, Child Support.
- BEM 256, Spousal/Parental Support.
- BEM 257, Third Party Resource Liability.
- BEM 265, Institutional Status.
- BEM 270, Pursuit of Benefits.

FINANCIAL ELIGIBILITY FACTORS

Groups

Use fiscal and asset group policies for SSI-related groups in BEM 211.

Assets

Countable assets **cannot** exceed the asset limit in BEM 400. Countable assets are determined based on the MA policies in BEM 400, 401 and 402.

Divestment

Policy in BEM 405 applies.

Income Eligibility

Income eligibility exists when net income does **not** exceed the special protected income level in RFT 245. Income eligibility **cannot** be established with a patient-pay amount or by meeting a deductible.

Determine countable income according to MA policies in BEM 500 and 530 **except** as explained in **COUNTABLE RSDI** below. Apply the deductions in BEM 541 to countable income to determine net income.

COUNTABLE RSDI

Exclude all DAC related RSDI benefits for the person whose DAC eligibility is being determined. Count any RSDI benefits that are not related to DAC.

For all other persons, countable RSDI is the person's gross RSDI for the month being tested. Gross RSDI means the amount before any deductions such as Medicare.

IDENTIFYING DACS

An individual may be receiving DAC RSDI benefits if one of the following descriptions applies:

- He has been identified as a DAC by central office or an SSI letter and his social security claim number suffix contains the letter C. The C may be followed by another letter or number (CA, CB, C1, etc.).
- He is more than 19 years 2 months old and his social security claim number suffix contains the letter C. The C may be followed by another letter or number (CA, CB, C1, etc.).
- He is age 18 or older, **not** a full-time student in elementary or secondary school and his social security claim number contains the letter C. The C may be followed by another letter or number (CA, CB, C1, etc.).

Note: When an individual meets a bullet listed you must request a screening for DAC eligibility from central office unless a determination has already been completed by central office. After you receive verification of DAC RSDI from central office you still need to determine all other factors for MA eligibility (income and asset etc., listed on page 1 of this item) are met. You should retain

the copy of the verification from central office as you only need to verify DAC eligibility once.

Requests must be made through your management or central specialized staff (include titles). Send requests to:

MDHHS-DAC-Determination-Mailbox@michigan.gov and include the beneficiary's name, case number, SSN, SS claim number and any other information pertaining to the request.

Note: An ex parte review (see glossary) is required before Medicaid closures when there is an actual or anticipated change, unless the change would result in closure due to ineligibility for all Medicaid. When possible, an ex parte review should begin at least 90 days before the anticipated change is expected to result in case closure. The review includes consideration of all MA categories. See BAM 115 and 220.

VERIFICATION REQUIREMENTS

Verification of the following factors unique to DAC eligibility is required prior to authorizing DAC MA eligibility:

- Receipt of SSI on the basis of blindness or a disability.
- Termination of SSI on or after July 1, 1987 because of entitlement to DAC RSDI benefits or an increase in such benefits.

Verification of receipt of DAC RSDI benefits under section 202(d) of the Act is required prior to authorizing DAC MA eligibility and at redetermination.

Verification policies for other eligibility factors are in the appropriate manual items.

Verification Sources

Receipt of SSI on the basis of blindness or a disability.

- Memo or other communication from central office.
- SSI letter.
- Social Security Administration.

Termination of SSI on or after July 1, 1987 because of entitlement to DAC RSDI benefits or an increase in such benefits:

- Memo or other communication from central office.
- SSI letter.
- Social Security Administration.

Current receipt of DAC RSDI benefits:

- Social security claim number suffix from BENDEX, SOLQ or other Social Security Administration document. See “Identifying DACs.”
- SSI letter.
- Social Security Administration.

**EXHIBIT I - CENTRAL
OFFICE MEMO**

STATE OF MICHIGAN
**Department of
Human
Services**

Outstate Operations
235 S Grand Ave
Lansing, MI 48909
www.michigan.gov

Department of Human Services

Tel: 517 373 2035

Memo

To: County DHS
From: DHS-DAC-Determination
Subject: Disabled Adult Child(DAC) Determination – BEM 158

Date: 06/25/2013

Case Name:

Social Security Number: XXX-XX-0000

A review of potential eligibility for Medicaid based on BEM 158, Disabled Adult Children (DAC), has been completed. We find that this customer is:

☐ **Not Eligible** for MA as a DAC because:

☐ **Potentially Eligible** for MA as a DAC. When determining this client's continued MA eligibility, please give first consideration to eligibility based on BEM 158. SSI benefits have been terminated for this client, and Social Security Administration records identify this client as potentially eligible for continued MA as a DAC.

*SSI eligibility end date: mm/dd/yyyy

*Disability Onset Date: mm/dd/yyyy

DO NOT REMOVE - THIS LETTER FROM CASE RECORD

LEGAL BASE**MA**

Social Security Act, Section 1634(c)
Deficit Reduction Act 2005, Social Security Act 1903(x), PL 109-171

**JOINT POLICY
DEVELOPMENT**

Medicaid, Adult Medical Program (AMP), Transitional Medical Assistance (TMA/TMA-Plus), and Maternity Outpatient Medical Services (MOMS) policy has been developed jointly by the Department of Community Health (DCH) and the Department of Human Services (DHS).